

CHAPTER – 14

OFFICIAL LANGUAGE

Part XVII of the Constitution deals with the official language in Articles 343 to 351. Its provisions are divided into four heads—Language of the Union, Regional languages, Language of the judiciary and texts of laws and Special directives.

The Constitution contains the following provisions in respect of the official language of the Union:

1. Hindi written in Devanagari script is to be the official language of the Union. But, the form of numerals to be used for the official purposes of the Union has to be the international form of Indian numerals and not the Devanagari form of numerals.
2. However, for a period of fifteen years from the commencement of the Constitution (i.e., from 1950 to 1965), the English language would continue to be used for all the official purposes of the Union for which it was being used before 1950.
3. Even after fifteen years, the Parliament may provide for the continued use of English language for the specified purposes.
4. At the end of five years, and again at the end of ten years, from the commencement of the Constitution, the president should appoint a commission to make recommendations with regard to the progressive use of the Hindi language, restrictions on the use of the English language and other related issues.
5. A committee of Parliament is to be constituted to examine the recommendations of the commission and to report its views on them to the president

REGIONAL LANGUAGES

The Constitution does not specify the official language of different states. In this regard, it makes the following provisions:

1. The legislature of a state may adopt any one or more of the languages in use in the state or Hindi as the official language of that state. Until that is done, English is to continue as official language of that state. Under this provision, most of the states have adopted the major regional language as their official language.
2. For the time being, the official language of the Union (i.e., English) would remain the link language for communications between the Union and the states or between various states. But, two or more states are free to agree to use Hindi (instead of English) for communication between themselves.
3. When the President (on a demand being made) is satisfied that a substantial proportion of the population of a state desire the use of any language spoken by them to be recognised by that state, then he may direct that such language shall also be officially recognised in that state. This provision aims at protecting the linguistic interests of minorities in the states

SCHEDULED LANGUAGES

The **Eighth Schedule to the Constitution of India** lists the official languages of the Republic of India.

Initially, there were 14 official languages. Now, there are 22 official languages in the 8th schedule of the Indian constitution.

Language	Spoken in Indian State of	Year of Recognition
Assamese	Assam	1950
Bengali	West Bengal	1950
Gujarati	Gujarat	1950
Hindi	North India	1950
Kashmiri	Jammu & Kashmir	1950
Kannada	Karnataka	1950
Malayalam	Kerala	1950
Marathi	Maharashtra	1950
Odia	Odisha	1950
Punjabi	Punjab	1950
Sanskrit	Karnataka (Shivamogga District)	1950
Tamil	Tamil Nadu	1950
Telugu	Andhra Pradesh, Telangana	1950
Urdu	Jammu & Kashmir, Telangana and Uttar Pradesh	1950
Sindhi	Rajasthan, Gujarat and Madhya Pradesh	1967

Konkani	Goa	1992
Manipuri	Manipur	1992
Nepali	Sikkim, Assam, Arunachal Pradesh	1992
Bodo	Assam and Meghalaya	2004
Dogri	Jammu and Himachal Pradesh	2004
Maithili	Bihar and Jharkhand	2004
Santhali	West Bengal, Jharkhand and Odisha	2004

Sindhi was added by the 21st Amendment Act of 1967; Konkani, Manipuri and Nepali were added by the 71st Amendment Act of 1992; and Bodo, Dogri, Maithili and Santhali were added by the 92nd Amendment Act of 2003.

SPECIAL DIRECTIVES

The Constitution contains certain special directives to protect the interests of linguistic minorities and to promote the development of Hindi language. There are:

Protection of Linguistic Minorities

In this regard, the Constitution makes the following provisions:

1. Every aggrieved person has the right to submit a representation for the redress of any grievance to any officer or authority of the Union or a state in any of the languages used in the Union or in the state, as the case may be. This means that a representation cannot be

rejected on the ground that it is not in the official language.

2. Every state and a local authority in the state should provide adequate facilities for instruction in the mother-tongue at the primary stage of education to children belonging to linguistic minority groups. The president can issue necessary directions for this purpose.

3. The president should appoint a special officer for linguistic minorities to investigate all matters relating to the constitutional safeguards for linguistic minorities and to report to him. The president should place all such reports before the Parliament and send to the state government concerned.

Development of Hindi Language

The Constitution imposes a duty upon the Centre to promote the spread and development of the Hindi language so that it may become the lingua franca of the composite culture of India